ARTICLE 4: Amend Zoning Bylaw - 3A Multi-Family Overlay District

To see if the Town will vote to amend the Zoning Bylaw and map to adopt a 3A Multifamily Overlay District by adding a new provision, as follows:

Amendment #1

ARTICLE 200-43.

A. Purpose. The purposes of 3A Multi-family Overlay District (3A Overlay) are:
   (1) To lower the permitting barrier for multifamily housing and to comply with the MBTA Communities Act, G.L. c. 40A § 3A;
   (2) To allow as-of-right multi-family housing in a variety of overlay zoning districts; and
   (3) To ensure high-quality site planning, architecture, and landscape elements that are consistent with the visual identity of the Town of Marblehead.

B. Scope and authority.
   (1) The 3A Multifamily Overlay District is superimposed over the underlying zoning district (s) as shown on the 3A Multifamily Overlay District Map dated [insert date], which is hereby made part of the Zoning Map of the Town of Marblehead. The use and dimensional regulations and all other provisions in the underlying district(s) shall remain in full force except for uses allowed in the 3A Overlay. At the option of the owner, development of land within a 3A Overlay may be undertaken through the plan approval process under this § 200-43 or by complying with all applicable requirements of the underlying district. Uses and dimensional controls of the 3A Overlay are not subject to any special permit requirements of the underlying district or applicable overlay districts.
   (2) The 3A Overlay consists of two subdistricts: the Broughton Road 3A Subdistrict and the Tedesco 3A Subdistrict. The boundaries of each district are as shown on the 3A Multifamily Overlay District Map

C. Definitions. All definitions are as they appear in §200-7 and §20-44D of this Bylaw. To the extent that there is any conflict between §200-44 and G.L. c. 40A, § 3A, the latter shall control.

D. Use Regulations.
   (1) The following uses shall be permitted subject to plan approval:

Table D: Permitted Uses		
Residence Uses	3A Broughton Road Subdistrict	3A Tedesco Subdistrict
Multifamily development project	Yes	Yes
Mixed-use development project	No	Yes

   (2) Nonresidential uses permitted as-of-right in the underlying district(s) are permitted as part of a mixed-use development project in the 3A Tedesco Subdistrict.
   (3) Prohibited uses or activities in the 3A District.
      (a) Any use prohibited by the underlying zoning in effect as of the date of adoption of this

Bylaw.

(b) Any use not listed in § 200-43D is expressly prohibited.

E. Dimensional Regulations.

(1) New buildings within the 3A Overlay shall be subject to the bulk, dimensional, and density requirements in Table E, Table of Dimensional and Density Requirements:

Table E: Dimensional and Density Requirements		
	3A Broughton Road Subdistrict	3A Tedesco Subdistrict
Minimum lot area (sq. ft.)	7,460	27,460
Maximum Residential Density (units/acre)	19	25
Minimum frontage (lin. ft.)	35	35
Minimum front setback (lin. ft.)	6	6
Minimum side setback (lin. ft.)	(a)	(a)
Minimum rear setback (lin. ft.)	(a)	(a)
Minimum open space (% lot area)	(b)	(b)
Maximum building height (ft.)	35	35

Notes to Table E:

(a) Except as to any boundary abutting any other business district, six feet; as to any boundary abutting any residential district, nine feet. May be reduced at the discretion of the approving authority.

(b) One square foot of open land area (in addition to the areas of required parking spaces on the lot) for each two square feet of gross floor area.

(2) Renovation of existing buildings may maintain the existing building footprints and may expand them only to the extent that the expansion complies with the dimensional requirements for new buildings.

(3) When applying the allowable density in Table E, Table of Dimensional and Density Requirements results in a number that includes a fraction, the fraction shall be rounded up to the next whole number if it is 0.5 or greater. If the result includes a fraction below 0.5, the fraction shall be rounded down to the next whole number.

(4) Signage. Commercial signage proposed within a mixed-use development project shall comply with the Marblehead Sign Bylaw, Chapter 148 of the Marblehead General Bylaws, in effect as of the date of adoption of this § 200-43.

F. Off-Street parking.

(1) Off-street parking shall comply with the following minimum requirements:

Table F: Off-Street Parking Requirements		
	3A Broughton Road Subdistrict	3A Tedesco Subdistrict
Dwelling unit (2 or more bedrooms)	2.0	2.0
Nonresidential use	N/A	1.0 space/300 sq. ft.

(2) Fractional spaces. When applying the minimum required parking standards in § 200-43F results in a number that includes a fraction, the fraction shall be rounded up to the next whole number if it is 0.5 or greater. If the result includes a fraction below 0.5, the fraction shall be rounded down to the next whole number.

(3) Location of parking. Any surface parking lot shall be located at the side or rear of a building, relative to any public right-of-way or public open space. Subsurface parking that requires blasting may be disallowed if the approving authority finds, based on the results of a geotechnical analysis, that it is not possible to mitigate any extraordinary adverse impact of blasting on nearby properties.

(4) During the plan approval process, the approving authority may modify the parking requirements in Table F or prescribe safeguards and conditions as it deems appropriate, provided it finds that:

(a) Meeting the requirements in Table F is impractical for the proposed development;

(b) The modifications are appropriate for the proposed use; and

(c) The modifications will not result in or exacerbate existing parking or traffic problems in or near the proposed development.

(5) The approving authority may impose use or occupancy conditions appropriate to the modifications.

(6) Each parking space shall be at least nine feet wide and 18 feet long and shall be designed with appropriate means of vehicular access to a street as well as maneuvering areas. Access and maneuvering areas shall not be obstructed or used for the parking of motor vehicles.

G. Design standards.

(1) To ensure that new development shall be of high quality, all applications shall comply with the Town of Marblehead Smart Growth Overlay District design standards as approved by the Executive Office of Housing and Livable Communities (EOHLC) on May 1, 2009 ("Design Standards"). The Design Standards shall govern the issuance of plan approvals for development projects within the 3A Districts. All applicants shall file an application with the plan approval authority for development projects within 3A Districts. In the event of any conflict between this Bylaw and the Design Standards, this Bylaw shall govern.

(2) The following additional requirements shall apply to structures in the 3A district:

(a) All structures shall have a 9 x 12 pitch gable roof.

(b) Dormers shall be permitted, provided that:

(i) No dormer shall exceed the peak of the roof;

(ii) There shall be a clear visual separation between the roof eaves of the building and the dormer; and

(iii) There shall be at least three feet of space between the side walls of the dormer and the edges of the roof; and

(iv) Each dormer shall have clear windows only on the front wall, accounting for at least 25 percent of the wall area.

(c) All windows shall be double-hung.

(d) All siding shall be clapboard.

(3) The following site development and landscaping requirements shall apply to development projects in the 3A Overlay District:

(a) A landscaping plan prepared by a registered landscape architect with a valid Massachusetts license shall be submitted as part of the plan approval submission process and shall comply with the plan approval authority's 3A Overlay Rules and Regulations. Landscape plans should be designed to integrate with building placement, circulation, and open space, thereby creating a cohesive environment.

(b) Plantings shall include species that are native or adapted to the region. Plants on the

Massachusetts Prohibited Plant List, as may be amended, shall be prohibited.

(c) A landscape edge shall be provided along public street frontages and maintained consistent with the requirements of this section.

(d) Street trees should be provided along the property line. Wherever possible, the trees should match the existing street trees in type and planting detail. Existing rows of trees along a street should be maintained.

(i) Shade trees should be provided at an average rate of one tree per 15 lineal feet of street frontage, preferably planted as groups of trees than rigidly spaced apart and located between 12 to 20 feet away from the traveled way. The caliper width shall be not less than two and one-half inches in diameter.

(ii) Transitional buffers shall be required between properties in the 3A Overlay and abutting residential districts to create a compatible transition with the surrounding neighborhoods. Landscaping within buffer areas may include shade, ornamental, or evergreen varieties, considering the quality and character of existing vegetation, soil types, light conditions, drainage, and so forth.

(e) Parking Area Design.

(i) Parking Area Plantings. In parking lots containing 30 or more spaces, a minimum of one deciduous shade or ornamental tree and two shrubs, exclusive of any required perimeter plantings, shall be planted for every 3000 square feet of parking lot. When planted, deciduous trees shall have a minimum height of 10 feet or a caliper width not less than two and one-half inches in diameter.

(ii) Trees and soil plots shall be so located as to provide visual relief and wind interruption within the parking area, and to assure safe patterns of internal circulation.

(iii) In parking lots with more than 75 spaces, the expanse of pavement shall be interrupted by separating rows of parking spaces from each other by installing a combined planting strip and sidewalk at least eight feet in width. Design of planting strips and sidewalks shall take into account the need to store snow, locate light poles, install deciduous trees, and allow safe pedestrian movement. In addition, if an existing parking lot is expanded to over 75 spaces, planting strips and sidewalks may be required for the entire lot as determined by the plan approval authority. All proposals to construct or modify parking lots shall be approved by the plan approval authority.

H. Affordable housing. Affordable Housing Requirements shall apply to any development under this § 200-43. In any development with more than six dwelling units, at least 10 percent of the units shall be affordable for households with income not exceeding 80 percent of the area median income as determined by EOHLC.

I. Administration. The Planning Board shall act as the approving authority and shall adopt Rules and Regulations to implement this § 200-43. The Board's Rules and Regulations shall include, at a minimum, administrative rules and submission requirements and procedures for plan review, and shall be filed with the Town Clerk. The plan review process for development under this § 200-43 shall be as provided under § 200-44(K), together with any rules and regulations adapted by the Planning Board to administer this § 200-43.

J. Effective Date. The effective date of this § 200-43 shall be the date of adoption by Town Meeting, However, no applicant shall proceed with construction pursuant to this § 200-43 until final approval by the Office of the Massachusetts Attorney General.

K. Severability. The provisions of this § 200-43 are severable. If any provision of this § 200-43 is held invalid, the other provisions shall not be affected but shall remain in full force.

Amendment #2
To amend the Marblehead Zoning Map by adding the 3A Multifamily Overlay District and its two subdistricts: the Broughton Road District and Tedesco District. The boundaries of the two districts are delineated as 3A Broughton Road Subdistrict and 3A Tedesco Subdistrict are as shown in the 3A Multifamily Overlay District Map dated February 11, 2026, which is hereby incorporated in the Marblehead Zoning Map and which is on file with the Town Clerk.

Or take any other action relative thereto. Sponsored by the Select Board.